FORM I-140 INSTRUCTIONS

Form I-140 – see https://www.uscis.gov/sites/default/files/document/forms/i-140.pdf

Below are the instructions for completing the 06/07/24 edition of the Form I-140. However, please note that instead of filling out a blank Form I-140 on your own, you should fill out the Questionnaire tab in your client account instead and we will review the Questionnaire content and generate a PDF Form I-140 for you.

Note: You are both the petitioner (the person or organization filing the petition) and the beneficiary (the person for whom you are filing).

Proprietary Confidential Documents

Part 1: Information About the Person or Organization Filing This Petition

1. Complete with your name, exactly as it appears on your passport. The name we use for filing your I-140 must match name used in your I-485 application, and the name used for your I-485 is the name that will be printed on your green card. If the name on your green card is different than the one on your passport, you may encounter difficulties at the border.
2. Please leave this item blank.
3. Enter your mailing address (include the apartment number, suite number or floor, if appropriate). If you enter a United States address, you will not need to provide a Postal Code or Province.
4. Please leave this item blank
5. Answer "No".
6. Answer "Yes" for self-petitioned cases.
7. Enter your U.S. Social Security Number (if any)
8. Enter your USCIS Online Account Number (if any)

Part 2: Petition Type

1. Place an “X” next to 1.h.
2. Leave blank, unless this petition is being filed to amend a previously filed petition

Part 3: Information About the Person for Whom You Are Filing

1. This information will be the same as in Part 1
2. This information will be the same as in Part 1
3. Enter your date of birth
4. Enter your City/Town/Village of Birth
5. Enter your State or Province of Birth

6. Enter your Country of Birth
7. Enter your Country of Citizenship or Nationality
8. Enter your Alien Registration Number (you may have an Alien Registration Number if you have applied for an EAD or have a previously adjudicated I-140). If you do not have an Alien Registration Number, please leave this item blank.
9. Enter your U.S. Social Security Number (if any)
10. Enter the date of your most recent entry into the United States
11. a. Enter your I-94 Number. This should be an 11-digit number. CBP now maintains electronic I-94 records. If you do not have the I-94 number, please go to the following website to retrieve the I-94 number - https://i94.cbp.dhs.gov/I94/#/recent-search
    b. Enter the Admit Until Date shown on Form I-94.
    c. Enter the Class of Admission shown on Form I-94.
12. Enter the passport number of the passport that you used when you last entered the US.
13. Enter your travel document number, if any.
14. Enter the country which issued your passport
15. Enter the expiration date for your passport

Proprietary Confidential Documents

Part 4: Processing Information

If you are in the United States and will file an I-485 for adjustment status once approved, select 2.a. If you will not be in the United States at the time of approval but know where you will be, select 1.a. and enter the city/town and country where you will be doing Immigrant Visa processing in 1.b. and 1.c. If you are not sure whether you will file an I-485 or do Immigrant Visa processing, you can check 1.a. If you check 1.a. and later need to file an I-485 instead, you can simply do so. It is more difficult to change to Immigrant Visa processing if you indicate here that you will be filing an I-485. If you checked 2.a., enter your last country of permanent residence in 2.b.

3. Enter your foreign address
4. Enter your name written **in your native alphabet** *if* your native alphabet is not written with the Roman/Latin alphabet. For example, languages such German, Spanish, and English are written with the Roman/Latin alphabet. Languages such as Chinese, Russian, and Nepali are not written with the Roman/Latin alphabet. If India is your native country, you do **not** need to provide your name in your native language, as English is an official language of India.

5. Enter your foreign address written **in your native alphabet** *if* your native alphabet is not written with the Roman/Latin alphabet.
6. If you are submitting other petitions at the same time as the I-140, check "Yes" and then place an "X" next to the forms you are submitting. If you are not submitting petitions other than the I-140 at this time, check "No" and go to question 7.
7. "Removal proceedings" refer to the process of deportation. If you are not in the process of being deported, then you may answer "No".
8. Answer "No" unless an immigrant visa petition has previously been filed on your behalf, i.e. I-140, I-485, or I-130. If an immigrant visa petition has previously been filed on your behalf, please provide the case number, office location, date of decision, and disposition of the decision in Part 11.
9. Answer "No"
10. Answer "No"

Part 5: Additional Information About the Petitioner

1. Select 1.b.
2. Please leave these items blank
3. Please leave these items blank
4. Please leave these items blank
5. Please leave these items blank
6. Please leave these items blank
7. Please leave these items blank
8. Please leave these items blank
9. Please leave these items blank
10. Please leave these items blank
11. Enter your occupation.
12. Enter your annual income.

Part 6: Basic Information About the Proposed Employment

1. Enter your job title
2. Enter your SOC Code. You can search for the SOC Code for your job title at the following link: https://www.bls.gov/soc/2018/major_groups.htm. If you cannot find an SOC Code that exactly matches the job title, please find the one that is the closest. Please note that the SOC Code that you provide will be what the USCIS will use to determine whether or not you have continued to work in your field of expertise at the I-485 or Immigrant Visa processing stage.
3. Write a brief description of the duties performed in your job
4. Indicate whether it is full-time; if "No," complete 5. If "Yes," go to 6.

Proprietary Confidential Documents

5. Only answer if the job is **not** a full-time position (less than 35 hours per week). If it is not, then enter the number of hours per week worked.
6. Select "Yes" if the job has no fixed termination date. Otherwise, select "No."
7. Indicate if this is a new position (hired less than 6 months ago)
8. Enter your wage and specify if the wage is per hour, week, month, or year
9. Enter the address of your worksite location.

Part 7: Information on Spouse and All Children of the Person for Whom You Are Filing

Please include information about your spouse and **all children under the age of 21**, not only children born outside of the US. If you have no dependents, leave this part blank.

If the person listed will be filing an I-485 for adjustment of status, please answer "yes" to the question "Applying for Adjustment of Status?" and "no" to the question "Applying for a Visa Abroad?" If the person listed will apply at a U.S. Department of State consulate abroad for an immigrant visa in order to come to the United States and be admitted as a permanent resident, please answer "no" to the question "Applying for Adjustment of Status?" and "yes" to the question "Applying for a Visa Abroad?"

Part 8: Signature of Petitioner

Please complete items 1.a.-1.b. and 3.-5., then hand-sign and date in items 6.a.-6.b.

Part 9: Interpreter's information

Please only fill this section if you required an interpreter. Otherwise, please leave it blank.

Part 10: Additional Information:

We will enter the information of our attorney and our firm in this section.

Part 11: Additional Information:

Please leave this part blank unless you require additional space within the petition to fill out the information. If you fill out this form, please write your name and alien registration number (if any) at the top right side of the page, above the black line. Please also sign and date on the page.

Proprietary Confidential Documents